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Tentative Ruling

Re: ***Salinas v. Aulakh et al.***
Superior Court Case No. 25CECG01598

Hearing Date: July 30, 2026 (Dept. 403)

Motion: By Defendant Stephen Rusconi for Order Determining Good Faith Settlement

Tentative Ruling:

To grant. (Code Civ. Proc., § 877.6.)

Explanation:

"Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005." (Code Civ. Proc., § 877.6, subd. (a)(1).)

"The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing." (Code Civ. Proc., § 877.6, subd. (b).)

"A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., § 877.6, subd. (c).)

Where the motion for good faith settlement is not contested, a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient to meet the settling party's burden of showing good faith. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.)

"The party asserting the lack of good faith shall have the burden of proof on that issue." (Code Civ. Proc., § 877.6, subd. (d).)

"[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling

defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. '[A] defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be.' [Citation.] The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499-500.)

Here, defendants Amardeep Aulakh and Chamkaur Singh Aulakh ("Aulakh Defendants") have the burden to show that the settlement agreement between plaintiffs Freddy Raymond Salinas, Jr. and Jennifer Williams ("Plaintiffs") and defendant Stephen Rusconi ("Defendant Rusconi") is not a settlement made in good faith.

Defendant Rusconi's motion for a determination of good faith settlement is supported by its counsel's declaration and exhibits thereto. The evidence includes responses to form interrogatories from Defendant Rusconi, responses to form interrogatories from Plaintiffs, and photos of the car accident. The evidence presented demonstrates that the settlement amount of \$10,000 offered by Defendant Rusconi is proportional or greater than their liability for Plaintiffs' \$67,626 in medical expenses. Equal apportionment of the total settlement to each plaintiff is acceptable as their respective medical expenses are similar.

Liability is disputed between codefendants. However, Aulakh Defendants do not specify, nor support by way of evidence, that Defendant Rusconi's portion of liability is not in the ballpark of \$10,000. While the Aulakh Defendants argue that discovery is incomplete, the court is not persuaded that the deposition of Defendant Rusconi and subpoenas from Plaintiffs' unnamed medical providers would provide evidence that changes Defendant Rusconi's proportion of liability or significantly change Plaintiffs' total medical expenses.

Aulakh Defendants fail to argue or present evidence that the settlement at issue is based on Defendant Rusconi's financial condition or available insurance proceeds. Defendant Rusconi's proposed settlement is to make a meaningful contribution to resolve Plaintiffs' claims, despite his assertion that he lacks liability for the incident.

There is no suggestion of collusion, fraud, or other tortious conduct by the settling parties in negotiating and settling the claims against Defendant Rusconi in the complaint and cross-complaint.

There is sufficient evidence to find that the settlement between Defendant Rusconi and the Plaintiffs was reached in good faith. Therefore, the court grants the motion.

